RESOLUTION NO. 33-2026

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF CLAYTON, AMENDING THE BALLOT LABEL/BALLOT QUESTION FOR A SPECIAL TAX MEASURE PLACED ON THE NOVEMBER 3, 2026 GENERAL MUNICIPAL ELECTION BALLOT RELATING TO EXTENDING THE TERM FOR TEN (10) YEARS AND ALTERING THE RATE AND METHOD OF APPORTIONMENT OF THE EXISTING SPECIAL TAX FOR COMMUNITY FACILITIES DISTRICT NO. 2007-1 (CITYWIDE LANDSCAPE MAINTENANCE) ("CFD")

THE CITY COUNCIL
City of Clayton, CA
Community Facilities District No. 2007-1
(Citywide Landscape Maintenance)

WHEREAS, on July 7, 2026, pursuant to the Mello-Roos Community Facilities Act of 1982 (commencing with Government Code section 53311 *et seq.*) and Section 9222 of the California Elections Code, the City Council adopted Resolution 29-2026, placing a measure on the November 3, 2026 General Municipal Election ballot in order to propose to Clayton voters a measure to extend the term of the existing special tax within the CFD for ten (10) years and to alter the CFD's rate and method of apportionment of the special tax; and

WHEREAS, by the same Resolution, the City Council also requested that the County of Contra Costa consolidate the General Municipal Election with the Statewide General Election being conducted on the same date and set rules and deadlines for the submission of arguments and rebuttals for and against the proposed measure; and

WHEREAS, Resolution 29-2026 included the following ballot label/ballot question which is intended to be printed in the ballot received by voters at the election:

CITY OF CLAYTON - MEASURE: ____.		
CITYWIDE LANDSCAPE MAINTENANCE EXTENSION AND ALTERATION OF RATE OF EXISTING SPECIAL TAX Shall the measure to fund on-going trail system operations and maintenance, roadway landscaping, open space weed abatement, and related services of the Clayton Community Facility District No. 2007-1 (Citywide Landscape Maintenance) by extending the special tax for ten years and amending its rate and method of apportionment of the special tax to $354.54/year per residential and $354.54/acre per non-residential parcels, for FYs 2027-2037, including annual inflationary adjustments to the special tax rates not to exceed 3% per year, and subject to continued citizen's committee oversight, be approved?	**Yes** **No**	

WHEREAS, in order to simplify and clarify the measure for Clayton voters, the City Council desires to amend the ballot label/ballot question as set forth herein.

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF CLAYTON, CALIFORNIA, DOES RESOLVE, DECLARE, DETERMINE AND ORDER AS FOLLOWS:

SECTION 1. Recitals. The City Council hereby finds and determines that the foregoing recitals are true and correct, are incorporated herein and by this reference made an operative part hereof.

SECTION 2. Amended Ballot Label/Ballot Question Language. The ballot label/ballot question to be submitted to Clayton voters with regards to the CFD Special Tax measure shall be amended to read as follows:

CITY OF CLAYTON - MEASURE: ____.		
CITYWIDE LANDSCAPE MAINTENANCE EXTENSION AND ALTERATION OF RATE OF EXISTING SPECIAL TAX Shall the measure to fund on-going trail system operations and maintenance, roadway landscaping, open space weed abatement, and related services of the Clayton Community Facility District No. 2007-1 (Citywide Landscape Maintenance) by extending the special tax for ten years and amending its rate and methodology to $354.45/year per residential parcel and $354.45/year per non-residential acre, including annual inflationary adjustments, subject to citizen's committee oversight, be approved?	**Yes** **No**	

SECTION 3. Placement on the Ballot. The full text of the Measure shall not be printed in the voter information guide, and a statement shall be printed in the ballot pursuant to Section 9223 of the Elections Code advising voters that they may obtain a copy of the Measure at no cost, upon request made to the City Clerk.

SECTION 4. No Further Amendments by this Resolution. This resolution only authorizes the amendment of the ballot label/ballot question for the CFD special tax measure that was placed on the November, 3, 2026 General Municipal Election ballot by City Council Resolution 29-2026. Except as expressly provided herein, Resolution 29-2026 shall remain in full force and effect as adopted on July 7, 2026.

SECTION 5. Delivery of Resolution to County. The City Clerk shall certify to the passage and adoption of this Resolution and enter it into the book of original resolutions. The City Council directs the City Clerk to deliver copies of this Resolution to the Clerk of the Board of Supervisors of Contra Costa County and to the Registrar of Voters of Contra Costa County.

SECTION 6. CEQA. The City Council hereby finds and determines that the ballot measure relates to organizational or administrative activities of governments that will not

result in direct or indirect physical changes in the environment, and therefore is not a project within the meaning of the California Environmental Quality Act ("CEQA") and the State CEQA Guidelines, section 15378(b)(5).

SECTION 7. Severability. If any provision of this Resolution or the application thereof to any person or circumstance is held invalid, such invalidity shall not affect other provisions or applications of the Resolution which can be given effect without the invalid provision or application, and to this end the provisions of this Resolution are severable. The City Council hereby declares that it would have adopted this Resolution irrespective of the invalidity of any particular portion thereof.

SECTION 8. Effective Date of Resolution. This Resolution shall take effect immediately upon its adoption.

PASSED, APPROVED, AND ADOPTED by the City Council of the City of Clayton, California, at a special public meeting thereof held on July 28, 2026 by the following vote:

AYES: Councilmembers Tillman, Trupiano, Diaz; Vice Mayor Enea; Mayor Wan

NOES:

ABSENT:

ABSTAIN:

THE CITY COUNCIL OF CLAYTON, CA

Jeff Wan
Jeff Wan (Jul 30, 2026 10:58:49 PDT)
Jeff Wan, Mayor

ATTEST:

Melissa Rhodes
Melissa Rhodes (Jul 30, 2026 11:00:22 PDT)
Melissa Rhodes, City Clerk

I certify that the foregoing resolution was duly and regularly passed by the City Council of the City Clayton at a special meeting held on July 28, 2026.

Melissa Rhodes
Melissa Rhodes (Jul 30, 2026 11:00:22 PDT)
Melissa Rhodes, City Clerk